

25STCV17032 25STCV17032

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV17032 Hearing Date: June 30, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV17032

ROBERT

CROWELL vs ONE ELECTRIC LLC

June

30, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION FOR PROTECTIVE ORDER REGARDING DEFENDANT'S EXCESSIVE AND OPPRESSIVE
DISCOVERY.

RULING:

The Court grants the Motion,
as specified below.

On or before July 17, 2026,
Defendant shall select 35 maximum requests of Special Interrogatories, and 35 Requests
for Admissions, out of the subject discovery, and serve a Notice thereof upon
Plaintiff, such that Plaintiff is informed of which item numbers to serve
responses to, which responses Plaintiff shall serve within 30 days after such
notice.

The Motion is otherwise
denied.

I.
BACKGROUND

On June 12, 2025, ROBERT
CROWELL (Plaintiff) filed a Complaint against ONE ELECTRIC, LLC (Defendant),
listing Causes of Action for:

1.
WRONGFUL TERMINATION IN VIOLATION OF
PUBLIC POLICY
2.
DISABILITY DISCRIMINATION IN VIOLATION OF
FAIR EMPLOYMENT AND HOUSING ACT
3.
FAILURE TO ENGAGE IN GOOD FAITH
INTERACTIVE PROCESS IN VIOLATION OF FAIR EMPLOYMENT AND HOUSING ACT
4.
FAILURE TO PROVIDE REASONABLE
ACCOMMODATION IN VIOLATION OF FAIR EMPLOYMENT AND HOUSING ACT
5.
RETALIATION IN VIOLATION OF THE FAIR
EMPLOYMENT AND HOUSING ACT

6.

FAILURE TO PREVENT DISCRIMINATION AND
RETALIATION IN VIOLATION OF FAIR EMPLOYMENT AND HOUSING ACT.

Plaintiff alleges that Defendant
wrongfully terminated his employment as a chief electrical estimator, instead
of engaging in the interactive process and providing reasonable accommodations after
Plaintiff's stent procedure and vascular surgery.

On May 22, 2026, Plaintiff
filed the Motion for Protective Order, to address Defendant's "excessive, cumulative, oppressive, and
disproportionate discovery." (Motion, 2:2-3.)

Defendant opposes, based upon
counterarguments such as inadequate meeting and conferring, a missing Separate
Statement, untimely motion, and incomplete responses that should not be excused.

II.

LEGAL STANDARD

An affected person or
organization "may promptly move for a protective order...." (Serrano v. Stefan Merli Plastering Co., Inc. (2008) 162
Cal.App.4th

1014, 1034, fn.10 [citing Code Civ. Proc., § 2025.420, subd. (a)].) There is no
specific deadline for a motion for protective order. (See Code Civ. Proc., §
2025.420, subd. (a) ["may promptly move for a protective order."].)

To prevail on motions for
protective orders, moving parties have the burden "to demonstrate that the
'discovery sought is unreasonably cumulative or duplicative, or is obtainable
from some other source that is more convenient, less burdensome, or less expensive'....,
or that the 'selected method of discovery is unduly burdensome or expensive'...."
(Sinaiko Healthcare Consulting, Inc. v.
Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 402.)

The decision upon whether
to enter a protective order lies within the sound discretion of the court. (Raymond Handling Concepts Corp. v. Superior
Court (1995) 39 Cal.App.4th 584, 588, 591.) Orders
granting or denying motions for protective orders are reviewed for abuse of

discretion. (People ex rel. Harris v. Sarpas (2014) 225 Cal.App.4th 1539, 1552.)

Courts should control

undue burden placed upon parties in requests for discovery. (Calcor Space Facility v. Superior Court (1997) 53 Cal.App.4th 216, 225.) An objection based upon discovery burden may be resolved by limiting the responses compelled. (See Snibbe v. Superior Court (2014) 224 Cal.App.4th 184, 197 [“trial court agreed ... reviewing over 900 charts and 600 surgeries would pose an undue burden, and limited the number of discoverable orders to alleviate that burden. Under the abuse of discretion standard, we cannot say that the limited discovery order is unreasonable.”].) Courts have discretion to prohibit discovery if it is unreasonably duplicative or unduly burdensome. (E.g., Code Civ.

Proc., § 2019.030, subd. (a); City of King City v. Community Bank of Central California (2005) 131 Cal.App.4th 913, 933; Emerson Elec. Co. v. Superior Court (1997) 16 Cal.4th 1101, 1110.)

“A determination of whether an attempt at informal resolution is adequate . . . involves the exercise of discretion.” (Stewart v. Colonial W. Agency (2001) 87 Cal.App.4th 1006, 1016. Accord, Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1293-1294.)

When no separate

statement is filed with a discovery motion, the matter may be ordered off calendar. (BP Alaska Exploration, Inc. v. Superior Court (1988) 199 Cal.App.3d 1240, 1270. See also Cal. Rules of Court, rule 3.1345 [requirements of discovery separate statements].) Courts have discretion to deny discovery motions where a filed separate statement lacks the content and format required by the California Rules of Court. (Mills v. U.S. Bank (2008) 166 Cal.App.4th 871, 893. Accord, St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 778.)

III.

ANALYSIS

Plaintiff reports that

the following discovery is involved: “• Form Interrogatories – General; • Form Interrogatories – Employment Law; • 44 Requests for Admission, Set One; • 69 Special Interrogatories, Set One; • 57 Requests for Production of Documents, Set One; • 223 Requests for Admission, Set Two; • 82 Special Interrogatories, Set Two; and • Form Interrogatory 17.1 directed to 267 Requests for Admissions.”

(Motion, 2:8-13.) Plaintiff seeks a Protective Order striking or limiting each of those, including excusal of further responses to special interrogatories, limiting Form Interrogatory 17.1, and limiting the scope of contention interrogatories.

Defendant complains that Plaintiff never specified discovery that is duplicative, burdensome, oppressive, vague, or otherwise improper, and a generalized burden does not show good cause for the Protective Order.

Where more than 35

Special Interrogatories or Requests for Admissions have been served with a declaration of necessity, and the responding party has moved for a Protective Order about an excessive number, then the burden is on the propounding party to justify the number. (Code Civ. Proc., §§ 2030.040, 2030.050, 2030.090, 2033.040 (b)). See also *Catanese v. Superior Court* (1996) 46 Cal.App.4th 1159, 1165.)

As for Plaintiff's

criticism of contention interrogatories, their scope is standard for learning the full extent of parties' positions in litigation, and cannot be avoided here. Contention interrogatories involve the reflection of attorneys in formulating a response in a sophisticated process of legal reasoning, sorting through evidence and organizing it in terms of contentions a party is asserting. (*Rifkind v. Superior Court* (1994) 22 Cal.App.4th 1255, 1263.) "There is no doubt that a defendant is entitled to discover by appropriate interrogatories the facts, if any, presently known to the plaintiff upon which he bases the allegations of his complaint and upon which he presently relies to prove his case." (*Tehachapi-Cummings Cnty. Water Dist. v. Superior Court of Kern Cnty.* (1968) 267 Cal.App.2d 42, 46.) "A party's contention may be the subject of discovery, but not the legal reasoning or theory behind the contention." (*Sav-On Drugs v. Superior Court* (1975) 15 Cal.3d 1, 5.) In responding to contention requests, respondents' willful obfuscation, game playing, stonewalling by referencing continuing discovery, providing immaterial information, or concealing support or a lack thereof, may support orders imposing drastic discovery sanctions. (See *Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093, 1102-1104.) Admission requests and Judicial Council form interrogatory No. 17.1 together require respondents to state all facts that support the contentions, and any factually devoid or unsupportive responses may shift the burden of proof for a motion for summary judgment. (*Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 580.) Form Interrogatory number 17.1 is a contention interrogatory. (See *Union Bank v. Superior Court*

(1995) 31 Cal.App.4th 573, 580 ["Those admissions requests and Judicial Council form interrogatory number 17.1 required plaintiffs to state all of the facts which supported the contention...."].)

Here, the Court finds that the discovery requests are somewhat excessive for a straightforward disability discrimination case involving settled law and narrow and uncomplicated factual allegations in the Complaint. Defendant does provide reasons for the discovery, at pages 3 through 4 of the Declaration of Suren N. Weerasuriya filed June 16, 2026. And generally, the Court finds that Defendant's explanations are supportive of most discovery. But because strict statutory limitations exist as to Special Interrogatories and Admissions Requests, and considering the explanations and allegations, the Court will limit each to a total of 35, to help alleviate the burden in responding to Defendant's somewhat excessive interrogatories.

IV.

CONCLUSION

The Court grants the Motion, as specified herein.